

26STCV17066 26STCV17066

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-04

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Case Number: 26STCV17066 Hearing Date: August 4, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 4, 2026 TRIAL DATE: Not Set

CASE: Duane K. Folke v. Sylmar Apts, Inc.

CASE NO.: 26STCV17066

MOTION

TO CONSOLIDATE

MOVING PARTY: Plaintiff Duane R. Folke

RESPONDING PARTY: Defendant Sylmar Apts, Inc.

CASE HISTORY:

06/01/26: Complaint filed.

06/16/26: Case Deemed Not Related with 26VEUD00036.

TENTATIVE RULING:

Plaintiff's motion to consolidate is DENIED.

Moving Party to
give notice.

BACKGROUND

This case involves a tenant vs. landlord dispute.

Plaintiff moves to consolidate this
action with 26VEUD00036.

DISCUSSION:

Motion to Consolidate

“When
actions involving a common question of law or fact are pending before the
court, it may order a joint hearing or trial of any or all the matters in issue
in the actions; it may order all the actions consolidated and it may make such
orders concerning proceedings therein as may tend to avoid unnecessary costs or
delay.” (Code Civ. Proc. § 1048, subd. (a).) The purpose of
consolidation is to enhance trial court efficiency by avoiding unnecessary
duplication of evidence and the danger of inconsistent adjudications. (See
Todd-Stenberg v. Dalkon Shield Claimants Trust (1996) 48
Cal.App.4th 976, 978-979.)

A Notice of

Motion to consolidate cases must (1) include a list of all named parties
in each case, the names of those who have appeared, and the names of their
respective attorneys of record; (2) include the captions of all the cases
sought to be consolidated; and (3) be filed in each case sought to be
consolidated. (Cal. Rules of Court (CRC), rule
3.350(a)(1).)

“Cases may not be consolidated

unless they are in the same department. A motion to consolidate two or more
cases may be noticed and heard after the cases, initially filed in different
departments, have been related into a single department, or if the cases were
already assigned to that department.” (Super. Ct. L.A. County, Local
Rules, rule 3.3(g)(1).)

First, the unlawful detainer case
has already proceeded to trial and adjudicated. Thus, it is no longer pending
and cannot be consolidated.

Next, this action and 26VEUD00036 have not been deemed
related or assigned to this Department. As a result, even if
the unlawful detainer case had not been adjudicated, the motion could not be
granted under Local Rules, rule 3.3(g)(1).)

Further, Plaintiff has not filed the notice of motion to
consolidate in 26VEUD00036. Plaintiff has thus not complied with CRC Rule 3.350(a)(1). In
fact, the Court has already ruled that this case and 26VEUD00036 are not
related within the meaning of CRC, rule 3.300(a).

Lastly,
Plaintiff's notice of motion does not comply CRC rule 3.350(a)(1) in that there
is no list of all named parties, those who have appeared and their respective
attorneys of record; and no caption of the cases sought to be consolidated.

CONCLUSION:

Accordingly, Plaintiff's motion to
consolidate is DENIED.

Moving Party to
give notice.

IT IS SO ORDERED.

Dated: August 4, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the
tentative ruling by contacting the courtroom via email at by no later
than 4:00 p.m. the day before the hearing. All interested parties must be

copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.